Sameesh Chawla vs State Of Nct Of Delhi on 10 November, 2022

Author: Anoop Kumar Mendiratta

Bench: Anoop Kumar Mendiratta

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 739/2022
SAMEESH CHAWLA ..... Petitioner
Through: Mr. Mohit Chaudhary, Mr. Kunal Sachdeva and Ms. Mahima Ahuja, Advocates.

versus

STATE OF NCT OF DELHI ..... Respo
Through: Mr.Laksh Khanna, APP fo
Insp. Yashpal Singh, PS

CORAM:
HON'BLE MR. JUSTICE ANOOP KUMAR MENDIRATTA
ORDER

% 10.11.2022

1. An application has been preferred on behalf of the petitioner under Section 439 Cr.P.C. for grant of regular bail in FIR No. 128/2020, under Section 406/420/120-B IPC registered at PS Economic Offences Wing.

2. In brief, as per the case of the prosecution, the present FIR was registered on the complaint of one Ms. Monika Khattar who alleged that petitioner Sameesh Chawla, Seema Chawla (wife) and his father Ramesh Kumar Chawla allured with investment schemes offering high rate of interest @ 2.5% per month. When the accused were approached by the complainant in May, 2019 demanding the money back, PDCs for the sum of Rs. 7,00,000/- and Rs. 4,00,000/- were issued with the assurance that the same would be encashed on presentation. However, the cheques were returned unpaid on account of Insufficient Funds. During the course of investigation, eleven other complainant/victims also filed complaints against the aforesaid accused.

An amount of Rs 1.64 crores approximately was reported to be involved in the complaints.

3. Learned counsel for petitioner submits that petitioner is in custody since 05.11.2021 and the witnesses have not been coming forward for the purpose of examination. Reference is made to proceedings before the learned Trial Court in aforesaid context. It is further submitted that no presumption can be drawn that apart from the cheque amounts any other amount was handed over in cash to the petitioners. It is urged that the amount alleged to be handed over by some of the

complainants was not credited in the account of the petitioner, but in the account of Ramesh Chawla (father of the petitioner).

It is also pointed out that though complaint had been lodged on behalf of Manju Chaudhary regarding handing over of the amount, but a sum of Rs. 4,90,000/- was allegedly transferred from the account of one Praveen Sharma. Further neither authorization has been produced by Manju Chaudhary from Praveen Sharma nor he is cited as a witness.

4. On the other hand, the application has been vehemently opposed by the learned APP for the State. It is urged that mere settlement or moving of an application by Monika Khattar for compounding of the offence, cannot absolve the petitioner as, sixteen complainants/victims have been duped of their hard-earned money. It is further urged that there was no enmity of the complainants with the petitioner or any of his family members, to falsely implicate the accused. It is also pointed out that petitioner does not have clean past antecedents and is involved in FIR no. 77/2019, registered at PS Division-II, Ludhiana, Punjab under Section 406/420/120B IPC, though, the learned counsel for petitioner claims that aforesaid case stands settled.

5. I have given considered thought to the contentions raised.

It cannot be ignored that 16 victims stand duped of their hard-earned money on the assurance of high returns. At this stage, it cannot be presumed that there were no transactions in cash with the petitioner apart from the amount credited in the account of petitioner and his family members. Merely because the amount may have been credited in the account of co-accused instead of the petitioner, he cannot be extended benefit as the offence was committed in conspiracy and collusion by all the accused. Further, merely because the amount had been given by Manju Chaudhary from the account of one Praveen Sharma, it does not lead to an inference that no such amount was credited at behest of Manju Chaudhary.

Considering the nature of fraud perpetuated by the petitioner, serious nature of offence and evidence on record, I am of the considered opinion that no grounds for bail are made out.

Nothing stated hereinabove shall tantamount to expression of opinion on the merits of the case.

The application is accordingly dismissed.

However, prosecution is directed to ensure that all the material witnesses are produced and examined before the learned Trial Court in a time bound manner to ensure expeditious trial.

A copy of this order be forwarded to the learned trial court for information and compliance.

ANOOP KUMAR MENDIRATTA, J.

NOVEMBER 10, 2022/ps